AI GOVERNANCE · HR

Which of HR's AI systems are high-risk, and what do they owe?

Client: The same four-country employer, whose HR function uses twelve AI systems, from CV screening to a pay review recommender and an attrition model built in-house.

> **Which systems does the AI Act ban or class as high-risk, what does each owe and from when, and whom do we have to tell before we use them?**

1 of 12
systems to stop now: emotion recognition in interviews

7
high-risk systems, with duties from 2 December 2027

1
system built in-house that makes the employer a provider

11 · 5+
systems to tell the German works council about · that need its agreement

WHAT I DID

- Read the AI Act and the Digital Omnibus (Regulation (EU) 2026/1744) in the Official Journal.
- Classified each system from eighteen answers: prohibited, high-risk, not high-risk under Article 6(3), transparency only or minimal, with the reason written next to it, and when its duties bite under the amended Article 111(2).
- Mapped fifteen obligations, including the fundamental rights impact assessment and registration that public bodies owe, and the national rules on informing workers in nine countries.
- Wrote what to ask each supplier (sixteen questions, each tied to a duty), an AI literacy plan for named groups, and a draft impact assessment per high-risk system that reuses the DPIA.
- Delivered a live Excel register, a report, model notices per country and a browser tool.

WHAT IT FOUND

- A video interview pilot infers candidates' emotions: prohibited since February 2025.
- National labour law binds before the AI Act does: Spain owes the works council the parameters of seven systems; Italy requires a written notice for the fully automated shift rota.
- Already on the market is not a free pass: the seven high-risk systems fall under the duties at their next significant design change (Art. 111(2)), and cloud HR software changes often.

WITH REAL DATA

- The suppliers' instructions for use and their Article 6(4) assessments, on file.
- The Commission's guidelines on high-risk classification applied to the boundary cases.
- A labour lawyer in each country to confirm the notices before they go out.

How it is checked. 813 figures reconciled between the Excel formulas and Python, recalculated by LibreOffice on every change; the browser tool checked against Python on 16,309 values; every legal statement read in the official text and logged with its source.

EU AI Act · Labour law in nine countries · AI governance · Excel modelling · Python

Try the tool https://d0m3n1c0x.github.io/ai-act-hr-readiness-kit/tool/

Read the report https://d0m3n1c0x.github.io/ai-act-hr-readiness-kit/

The repository https://github.com/D0M3N1C0X/ai-act-hr-readiness-kit

Synthetic or public data; not legal, pay or investment advice. Figures as published on 8 November 2026. Domenico Perroni · HR advisory, people analytics, reward · Kraków · d0m3n1c0x.github.io